

[doc. web n. 10138981]
Provision of March 27, 2025
Register of provisions
n. 167 of March 27, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia, and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers entrusted to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's
Regulation No. 1/2000 on the organization and
functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

REPORTING Attorney Guido Scorza;

PREMISED

1. Introduction.

With a complaint submitted pursuant to Article 77 of
the Regulation, Messrs. XX, XX, and XX have alleged,
through their legal representative, an alleged
violation of the regulations on the protection
of personal data concerning the use, at

the premises of the “P. Galluppi” Higher Education Institute in Tropea, of a system for monitoring the attendance of administrative staff that, requiring the use of the fingerprints of the workers, would imply the processing of the related biometric data in order to uniquely identify them.

2. The investigative activity.

In this regard, during the investigation, by note of XX, the Institute declared, in particular, that:

“at the various premises of the IIS of Tropea, the ATA staff certifies their presence at work through a badge reader acquired in the school year XX [...] Over time, however, [...] the Institute has detected situations that have generated doubts about the correct use of the badge and the actual presence at work of badge holders, in addition to episodes of tampering, damage, and vandalism. To address these actions and to verify the actual presence at work of employees during the scheduled hours, the School Management proposed to the staff, for their exclusive protection, the integration of the monitoring system with the use of the fingerprint in conjunction with the badge, which was welcomed favorably by them”;
“the system adopted was chosen based on the guarantee regarding the correctness of data processing and compliance with the GDPR provided by the supplying company”;
“it was not considered necessary to inform and involve the DPO, believing that the technical indications and guarantees provided by the company, in addition to the consent given by the involved ATA staff, were sufficient, and indeed at the urging of the same, regarding the adoption of such a system for the guarantee of all”;
“to the involved staff, in order to allow them to express free consent, the possibility of alternatively using the attendance monitoring system with the badge without association of the fingerprint was guaranteed. [...] Except for the two gentlemen [...] among the complainants, all ATA staff (34 units), in service at the Higher Education Institute of Tropea, have given their consent to the integration of the attendance monitoring system [...] The signed consents from the interested ATA staff are kept on file at the school”;
“following the receipt of the complaint [i.e., on XX, the day on which the Authority sent the Institute a request for information pursuant to Article 157 of the Code], [...] the Institute immediately suspended the monitoring of attendance with the badge associated with the fingerprint. To date, despite the requests from all ATA staff (except the two units that filed the complaint) for reactivation of the badge system with fingerprint, raised and urged by them during the start-of-year meetings of XX, with the

availability of all the aforementioned staff to submit a written request and further consent for the reactivation of the system, attendance monitoring is certified with the SOLE use of the badge WITHOUT fingerprint.”

As for the specific functioning of the attendance monitoring system previously in use at the Institute, from the technical documentation transmitted in attachment to the aforementioned note of XX, it is evident, in particular, that:

“the operation of the fingerprint reader, biometric data processing) of the Code, which establishes that the processing of biometric data must comply with specific conditions to ensure the protection of the rights and freedoms of the data subjects.

4. The findings of the investigation.

Based on the elements acquired during the investigation and the documentation provided by the Institute, it has been established that the biometric data of administrative, technical, and auxiliary staff (A.T.A.) were processed for the purpose of uniquely identifying them to monitor their attendance at work. This processing was conducted without a legal basis, in violation of the principles of lawfulness, fairness, and transparency as outlined in Article 5, paragraph 1, letter a), and Articles 6 and 9 of the Regulation.

5. The conclusions.

In light of the above, it is concluded that the processing of biometric data by the Institute was not compliant with the applicable legal framework. The Institute is hereby required to cease the processing of biometric data and to ensure that any data previously collected is deleted in accordance with the relevant legal provisions. The Institute is also reminded of its obligation to implement appropriate measures to protect the personal data of its employees and to ensure compliance with the principles of data protection as established by the Regulation.

6. Final provisions.

This decision is subject to appeal in accordance with the provisions of Article 78 of the Regulation. The Institute is advised to take immediate action to comply with the requirements set forth in this decision and to inform the Authority of the measures taken within 30 days from the date of notification of this decision.

processing of genetic, biometric, and health-related data) of the Code (as amended by Legislative Decree No. 101 of August 10, 2018, for the alignment of national legislation with the provisions of the Regulation). The provision states that the processing of such categories of data is lawful if one of the conditions set out in Article 9, paragraph 2, of the Regulation is met “and in accordance with the safeguards established by the Authority,” in relation to each category of data.

The employer, as the data controller, is, in any case, required to comply with the principles of personal data protection, including in particular those of “lawfulness, fairness, and transparency,” “data minimization,” and protection of data “by design” and “by default” (Articles 5 and 25 of the Regulation).

4. Outcome of the investigative activity.

From the assessment carried out based on the elements acquired and the facts emerged from the investigative activity, as well as the subsequent evaluations of the Authority, it has been established that, from XX until the date of XX, the Institute has used, at its premises, a system for recording the attendance of A.T.A. staff that required the use of the fingerprints of workers who had given their consent, thereby resulting in the processing of the related biometric data intended to uniquely identify individual employees for the purpose of recording their presence at work as well as to prevent “episodes of tampering, damage, and vandalism” (see note of XX).

In particular, it has been established that the aforementioned system, by processing the characteristics

of the acquired fingerprint, allows for the creation of a mathematical model that, when associated with the identification code of the individual concerned, constitutes the reference for subsequent checks at the time of employee clocking in.

Although it does not retain records of employees' personal data, images, or "direct or deducible physical data" of the related fingerprints and, on the other hand, "the 'reconstruction of the fingerprint' starting from the model is not [...] possible, even knowing the processing algorithm" (see note of XX), the following observations are made.

The information processed through this system is nonetheless attributable to a code directly identifying the individual employee, allowing or confirming their unique identification and therefore constitutes biometric personal data (see Article 4, nos. 1) and 14), of the Regulation).

That said, it should be noted that the purpose of recording the attendance of employees, which is functional to verifying compliance with working hours for its accounting, is generally provided for within a regulatory framework that has developed over time in the context of public employment (see, for example, Article 22, paragraph 3 of Law No. 724 of December 23, 1994; Article 3 of Law No. 244 of December 24, 2007; Article 7 of Presidential Decree No. 13 of February 1, 1986), falls within the scope of application of Article 9, paragraph 2, letter b) of the Regulation as it involves processing "necessary for fulfilling the obligations and exercising the specific rights of the data controller or the data subject in the field of labor law [...]" (see also Article 88, paragraph 1, of the Regulation).

However, the use of attendance recording systems that also involve the processing of biometric data requires, under the system of the Regulation and the Code, an express regulatory provision and specific guarantees for the rights of the data subjects (the processing is indeed permitted "to the extent that it is authorized by Union or Member State law [...] in the presence of appropriate safeguards for the fundamental rights and interests of the data subject," Article 9, paragraph 2, letter b), of the Regulation and recitals 51-53, and "in compliance with the safeguards" identified by the Authority pursuant to Article 9, paragraph 4, of the Regulation and Article 2-septies of the Code).

In the workplace, the processing of biometric data can only be lawfully carried out if it is based on a regulatory provision that can be considered a legal basis for the processing "suitable" also in light of the structure of the sources of the "constitutional order" of the Member State (see recital 41 of the Regulation and also Constitutional Court ruling No. 271/2005, according to which the regulation of personal data protection falls within the exclusive state competence related to the "civil order"). Such provision must, in fact, have the characteristics required by the data protection regulation and meet specific requirements, both in terms of the quality of the source, necessary content, and appropriate and specific measures to protect the rights and freedoms of the data subjects, as well as in terms of the proportionality of the regulatory intervention concerning the objectives to be pursued (Article 6, paragraphs 2 and 3, letter b), of the Regulation). This is because the legal basis for processing, to be considered a valid condition for the lawfulness of processing, must, among other things, "pursue a public interest objective and [be] proportionate to the legitimate objective pursued" (Article 6, paragraph 3, letter b), of the Regulation).

In this regard, it should also be noted that Article 2 of Law No. 56 of June 19, 2019, entitled "Interventions for the concreteness of actions by public administrations and the prevention of absenteeism," had provided for a general replacement of automatic attendance recording systems with biometric data recording systems along with the use of surveillance systems, stating that, "for the purpose of verifying...

of compliance with working hours," public administrations - identified pursuant to Article 1, paragraph 2, of Legislative Decree No. 165/2001, excluding "personnel under public law" (see Article 3, paragraph 2, Legislative Decree No. 165/2001), and those subject to the discipline of agile work referred to in Article 18 of Law No. 81 of May 22, 2017 - "introduce biometric identification systems and video surveillance in place of the various automatic detection systems currently in use" but also provides that the "implementation methods" of the regulation – in compliance with Article 9 of the Regulation and the guarantee measures defined by the Guarantor pursuant to Article 2-septies of the

Code – are to be identified by a Prime Ministerial Decree (d.P.C.M.), upon proposal by the Minister for Public Administration, following an agreement with the unified conference (state, regions, and local authorities) and “subject to the opinion of the Guarantor pursuant to Article 154 of the Code on the methods of processing biometric data.”

In exercising its advisory powers on legislative acts (Articles 36, paragraph 4, and 58, paragraph 3 of the Regulation as well as Article 154 of the Code), the Guarantor had, at the time, pointed out to the national legislator the critical issues of the regulation, highlighting, in particular, “the excess with respect to the objectives intended to be pursued, also in terms of the graduality of the restrictive measures that can be adopted towards workers” (see provision of October 11, 2018, No. 464, web document No. 9051774) and - confirming what had already been noted during hearings before the competent parliamentary committees (hearings before the Joint Committees I and XI, Constitutional Affairs and Labor, of the Chamber of Deputies on February 6, 2019, web document No. 9080870) - reiterated, also in relation to the draft implementation regulation, which has never been adopted, that “the systematic, generalized, and undifferentiated introduction for all public administrations of biometric presence detection systems cannot be considered in any way compliant with the principle of proportionality - as defined by European and domestic jurisprudence - due to the constraints imposed by European legislation on the matter, because of the invasiveness of such forms of verification and the implications arising from the particular nature of the data” (provision of September 19, 2019, No. 167, web document No. 9147290).

The provisions that provided for the introduction of biometric presence detection systems in the public sector, contained in paragraphs 1 to 4 of Article 2 of Law No. 56 of June 19, 2019, were ultimately repealed by Law No. 178 of December 30, 2020 (c.d. Budget Law 2021, Article 1, paragraph 958).

For these reasons, it is highlighted that, in the absence of specific provisions that provide for the processing of biometric data for the purpose of presence detection and the related guarantees, such processing cannot be lawfully carried out, as there is no legal basis.

In this context, the Guarantor has, in numerous cases, established the illegality of the processing of biometric data of employees for the purpose of presence detection carried out by public and private entities in violation of Articles 5, paragraph 1, letter a), 6, and 9 of the Regulation, adopting the consequent corrective and sanctioning measures (provision of December 15, 2022, No. 422, web document No. 9852776; provision of December 15, 2022, No. 423, web document No. 9852800; provision of January 14, 2021, No. 16, web document No. 9542071; for similar considerations in the private sector, see provisions of February 22, 2024, Nos. 105, 106, 107, 108, and 109, web documents Nos. 9995680, 9995701, 9995741, 9995762, 9995785; provision of November 10, 2022, No. 369, web document No. 9832838).

In the aforementioned provisions, the Guarantor also clarified how the lack of a legal basis regarding the processing of biometric data cannot be remedied even by the consent of the employees, which the Institute claimed to have obtained in the specific case, also ensuring employees who did not provide such consent the possibility to attest their presence at work without providing biometric data for that purpose. This is because, in light of the asymmetry between the respective parties in the employment relationship and the consequent, eventual, necessity to ascertain, from time to time and in concrete terms, the actual freedom of the employee's expression of will, consent does not generally constitute a valid basis for legality for the processing of personal data in the employment context, regardless of whether the employer is public or private (see Opinion No. 43; Article 4, point 11), and Article 7, paragraphs 3 and 4, of the Regulation; see the established orientation at the European level, Article 29 Working Party, Opinion 2/2017 on the processing of data in the workplace, WP 249, pp. 7 and 26, and Guidelines on consent under EU Regulation 2016/679 - WP 259 - of May 4, 2020).

For the reasons stated above, it must be concluded that the processing of biometric personal data of administrative, technical, and auxiliary employees (A.T.A.), carried out by the Institute for the purpose of uniquely identifying them to detect their presence at work, has been carried out in a manner not compliant with the principle of “lawfulness, fairness, and transparency” and in the absence of an

appropriate legal basis, in violation of Articles 5, paragraph 1, letter a), 6, and 9 of the Regulation.

5. Conclusions.

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation - the truthfulness of which may be subject to accountability pursuant to Article 168 of the Code - while deserving of consideration, do not allow for overcoming the objections notified by the Office with the initiation act.

the proceedings and are insufficient to allow for the archiving of the present proceedings, as none of the cases provided for in Article 11 of the Garante Regulation No. 1/2019 apply. Therefore, the preliminary assessments of the Office are confirmed, and the illegality of the processing of personal data carried out by the Institute is noted, for having conducted the aforementioned processing in violation of Articles 5, paragraph 1, letter a), 6, and 9 of the Regulation.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct (the same processing or related treatments), Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Given that, in this case, the violations are subject to the sanction provided for in Article 83, paragraph 5, of the Regulation, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering, in any case, that the conduct has exhausted its effects - since the Institute has declared that it has suspended the use of the biometric attendance detection system for A.T.A. employees in XX and has deleted the previously collected biometric data - the prerequisites for the adoption of further corrective measures under Article 58, paragraph 2, of the Regulation do not exist.

6. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code).

The Garante, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the College [of the Garante] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Garante’s website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Garante Regulation No. 1/2019).

In this regard, taking into account Article 83, paragraph 3, of the Regulation, in this case, the violation of the cited provisions is subject to the application of the administrative pecuniary sanction provided for in Article 83, paragraph 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for in Article 83, paragraph 2, of the Regulation.

In particular, considering that:

- the processing only concerned A.T.A. employees (34 persons), who were nonetheless recognized as having the possibility to record their presence at work through traditional methods that did not involve the processing of biometric data (Article 83, paragraph 2, letter a), of the Regulation);
- the data controller, relying on the information provided by the supplier company of the system, deemed it unnecessary to consult its data protection officer, an initiative that would have instead allowed the latter to become aware of the specific and high risks to the rights and freedoms of the data subjects involved and to guide its choices in this regard in a more informed manner and, if necessary, differently (Article 83, paragraph 2, letter b), of the Regulation);
- the processing involved biometric data intended to uniquely identify the data subjects referred to in Article 4, no. 14), of the Regulation, data that, similarly to health and genetic data, are protected in a particularly stringent manner by the Regulation and the Code (cf. Article 83, paragraph 2, letter g), of

the Regulation),

it is believed that, in this case, the level of severity of the violation committed by the data controller is high (cf. European Data Protection Board, "Guidelines 4/2022 on the calculation of administrative pecuniary sanctions pursuant to the GDPR" of May 24, 2023, point 60).

That said, keeping in mind that, in any case, the data controller is constituted by a school institution, it is believed that, for the purposes of quantifying the sanction, the following mitigating circumstances should be taken into account:

- the data controller has offered good cooperation with the Authority during the investigation, having, moreover, provided timely communication of the initiatives undertaken to remedy the violation (Article 83, paragraph 2, letter f), of the Regulation);
- there are no relevant previous violations committed by the Institute (Article 83, paragraph 2, letter e), of the Regulation).

By reason of the aforementioned elements, assessed in their entirety, it is believed to determine the amount of the pecuniary sanction at €4,000.00 (four thousand/00) for the violation of Articles 5, 6, and 9 of the Regulation, as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

It is also believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this section containing the injunction order on the Garante's website should proceed.

Guarantor. This is in consideration of the particular nature of the personal data subject to processing and the associated risks for the data subjects in the workplace context.

It is noted, finally, that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR

declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the illegality of the processing carried out by the Higher Education Institute "P. Galluppi" Tropea for violation of Articles 5, 6, and 9 of the Regulation, as specified in the reasoning;

ORDERS

the Higher Education Institute "P. Galluppi" Tropea, represented by the legal representative pro tempore, with registered office at Viale Coniugi Crigna snc - 89861 Tropea (VV), Tax Code 96012510796, to pay the sum of €4,000.00 (four thousand/00) as an administrative pecuniary sanction for the violations indicated in the reasoning. It is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

COMMANDS

the aforementioned Institute, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €4,000.00 (four thousand/00) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions in accordance with Article 27 of Law No. 689/1981;

DISPOSES

- pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, the publication of the injunction order on the Guarantor's website;
- pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Guarantor's Regulation No. 1/2019, the publication of this provision on the website of the Authority;
- pursuant to Article 17 of the Guarantor's Regulation No. 1/2019, the annotation of the violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, it is possible to appeal against this provision before the ordinary judicial authority, under penalty of

inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, March 27, 2025

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Scorza

THE SECRETARY GENERAL

Mattei